

[Commonwealth Act No. 58, October 20, 1936]

AN ACT CREATING THE CITY OF CEBU.

Be it enacted by the National Assembly of the Philippines:

SECTION 1. This Act shall be known as the Charter of the City of Cebu.

ARTICLE I.—*General Provisions*

SEC. 2. *Corporate character of the City of Cebu.*—The City of Cebu constitutes a political body corporate and as such is endowed with the attribute of perpetual succession and possessed of the powers which pertain to a municipal corporation, to be exercised in conformity with the provisions of this charter.

SEC. 3. *Territorial jurisdiction.*—The territorial jurisdiction of the City of Cebu which is hereby created, shall comprise the present territorial jurisdiction of the municipality of Cebu.

SEC. 4. *Seal and general powers of city.*—The city may have a common seal, and alter the same at pleasure, and may take, purchase, receive, hold, lease, convey, and dispose of real and personal property for the general interests of the city, condemn private property for public use, contract and be contracted with, sue and be sued, prosecute and defend to final judgment and execution, and exercise all the powers hereinafter conferred.

SEC. 5. *City not liable for damages.*—The city shall not be liable or held for damages or injuries to persons or property arising from the failure of the Mayor, the Municipal Board, or any other city officer, to enforce the provisions of this charter, or any other law or ordinance, or from negligence of said Mayor, Municipal Board, or other officers while enforcing or attempting to enforce said provisions.

SEC. 6. *Jurisdiction of city for police purposes.*—The jurisdiction of the City of Cebu for police purposes only shall extend to three miles from the shore into the Bay of Cebu and over a zone surrounding the city on land of two and one-half miles in width; and for the purpose of protecting and insuring the purity of the water supply of the city such police jurisdiction shall also extend over all territory within the drainage area of such water supply, or within one hundred meters of any reservoir, conduit, canal, aqueduct, or pumping station used in connection with the city water service. The Municipal Court of the City of Cebu shall have concurrent jurisdiction with the Court of First Instance of Cebu and the justice of the peace courts of the respective municipalities, to try crimes and misdemeanors committed within said zone of two and one-half miles in width, within said drainage area, or within said spaces of one hundred meters. The court first taking jurisdiction of such an offense shall thereafter retain exclusive jurisdiction thereof. The police of the several municipalities concerned shall have concurrent jurisdiction with the police of the City of Cebu for the maintenance of good order and the enforcement of lawful ordinances throughout said zone, area and spaces. But any license that may lawfully be granted within said zone, area or spaces shall be granted by the proper

authorities of the municipality concerned, and the fees arising therefrom shall appertain to the treasury of the municipality concerned and not to that of the City of Cebu.

ARTICLE II.—*The Mayor, the Municipal Board, and Municipal Offices and Officers in General*

SEC. 7. *The Mayor; his appointment and compensation.*—The Mayor shall be the chief executive of the city and as such, shall have immediate control over the executive functions of the different departments, subject to the authority and supervision of the Secretary of the Interior.

The Mayor shall be appointed by the President of the Philippines with, the approval of the Commission on Appointments, shall hold office for three years unless sooner removed, and shall receive a salary of six thousand pesos a year.

SEC. 8. *The acting mayor.—In the event of the sickness.*—In the event of sickness, absence or other temporary incapacity of the Mayor, or in the event of a definitive vacancy in the position of mayor, the city engineer shall perform the duties of the Mayor until said office shall be filled, in accordance with law. If, for any reason, the city engineer is temporarily incapacitated for the performance of the duties of the office of mayor, or said office of city engineer is vacant, the duties of the Mayor shall be performed by the city treasurer. The acting mayor shall have the same powers and duties as the Mayor, and shall receive the same compensation.

SEC. 9. *General ditties and powers of the Mayor.*—The general duties and powers of the Mayor shall be:

- a. To comply with and enforce and give the necessary orders for the faithful enforcement and execution of the laws and ordinances in effect within the jurisdiction of the city.
- b. To safeguard all the lands, buildings, records, moneys, credits, and other property and right of the city, and, subject to the provisions of this charter, have control of all its property.
- c. To see that all taxes and other revenues of the city are collected, and applied in accordance with appropriations to the payment of the municipal expenses.
- d. To cause to be instituted judicial proceedings to recover property and funds of the city wherever found, and otherwise to protect the interests of the city, and to cause to be defended all suits against the city.
- e. To see that the executive officers and employees of the city properly discharge their respective duties. The Mayor may, in the interest of the service and with the approval of the Secretary of the Interior first had transfer officers and employees not appointed by the President of the Philippines from one section, division or service to another section, division or service within the same department, without changing the compensation they receive.
- f. To examine and inspect the books, records, and papers of all officers, agents, and employees of the city whenever occasion arises, and at least once in each year.
- g. To give such information and recommend such measures to the Board as he shall deem advantageous to the city.
- h. To attend the sessions of the Board and participate in its discussions, but not to vote.

- i. To represent the city in all its business matters and sign on its behalf all its bonds, contracts, and obligations made in accordance with laws or ordinances.
- j. To release, subject to such conditions as he may see fit, or unconditionally, any person imprisoned or sentenced for violation of a city ordinance, or remit the sentence of such person, or any part thereof.
- k. To submit to the Municipal Board before the thirty-first day of October of each year a budget of receipts and expenditures of the city.
- l. To receive, hear, and decide as he may deem proper the petitions, complaints, and claims of the residents concerning all classes of municipal matters of an administrative and executive character.
- m. To grant and refuse municipal licenses or permits of all classes and to revoke the same for violation of the conditions upon which they were granted, or if acts prohibited by law or municipal ordinance are being committed under the protection of such licenses or in the premises in which the business for which the same have been granted is carried on, or for any other good reason of general interest.
- n. To determine the time, manner, and place of payment of the salaries and wages of the officers and employees of the city.
- o. To excuse, with the concurrence of the Director of Education, deserving poor pupils from the payment of school fees or of any part thereof.
- p. To take such emergency measures as may be necessary to avoid fires, floods, and the effects of storms and other public calamities.
- q. To perform such other duties and exercise such other executive powers as may be prescribed by law or ordinance.

SEC. 10. *Secretary to Mayor*.—The Mayor shall appoint one secretary who shall have charge and custody of all records and documents of the city and of any office or department thereof for which provision is not otherwise made; shall keep the corporate seal and affix the same with his signature to all ordinances and resolutions signed by the Mayor and to all other official documents and papers of the government of the city as may be required by custom, in the discretion of the Mayor; shall attest all executive orders, proclamations, ordinances and resolutions signed by the Mayor and shall perform such other duties as the Mayor may require of him; shall, on demand, furnish certified copies of all city records and documents in his charge which are not of a confidential character, and collect and receive such fees as may be prescribed by resolution of the Board. The position of secretary shall be regarded as within the unclassified civil service but may be filled in the manner in which classified positions are filled, and if so filled, the appointee shall be entitled to all the benefits and privileges of classified employees, except that he shall hold office only during the term of office of the appointing Mayor and until a successor in the office of secretary is appointed and qualified, unless sooner separated.

SEC. 11. *Execution of authorized public works and improvements*.—Unless the Secretary of the Interior shall otherwise direct, all public works of construction, repair, and improvements of the city shall be carried on by administration, under the direction of the Mayor. For justified reasons, the Mayor, with the advice and consent of the Municipal Board, may also have said work done totally or partially by contract, upon advertising for bids therefor. In this event, the Mayor shall advertise for sealed bids or proposals for the same in two newspapers published in Cebu, for a period of two weeks, the first insertion to be not less than ten days before the day fixed for opening such proposals. A plan or profile of the work to be done, accompanied by specifications for the performance of the same,

shall, at all proper times, be open for public inspection. All bids shall be opened in the presence of the Mayor at the advertised time and place. Each bid shall be accompanied by a deposit, the amount and character of which shall be fixed by the Mayor and named in the advertisement, and which shall not exceed ten per centum of the estimated cost of the improvement or work to be done where the estimated cost exceeds two thousand pesos, nor be less than two hundred pesos in any case. Such deposit shall be forfeited to the city if the bidder shall neglect or refuse to enter into a contract, with approved sureties, to execute the work for the price mentioned in his bid and according to the plans and specifications, in case the contract shall be awarded to him. The Mayor may reject any or all bids received. Should all bids be rejected, or should it become necessary for any reason to call for new bids, subsequent advertisements shall be for a period of five days before the proposals are opened, and in the manner above prescribed. Bonds, to be approved by the Mayor, shall be taken for the faithful performance of all contracts. Contracts shall be executed in triplicate by the Mayor and by the contractor, and one original shall be filed in the office of the Mayor, one in the office of the Auditor General, and the third shall be given to the contractor.

SEC. 12. *Constitution and organization of the Municipal —Municipal Board, Amen Board.*—The Municipal Board shall be the legislative body of the city and shall consist of the City Mayor and seven elective councilors. The City Mayor shall preside at all the meetings in which he is present. In his absence the City Engineer will act as temporary presiding officer of the Board. The President shall sign all ordinances, and all-resolutions and motions directing the payment of money or creating liability, enacted or adopted by the Board. In case of sickness or absence of any member of the Council or if for any reason it becomes necessary to maintain a quorum, the President of the Philippines may make a temporary appointment until the return to duty of the sick or absent member. During the period of such temporary appointment the person receiving the same shall possess all rights and perform all the duties of a member of the Board.

SEC. 13. *Qualifications, election, suspension and removal members of Board.*—The members of the Municipal Board shall be elected at large from the entire city, and each of them at the time of his election shall be a resident for at least one year, and a qualified elector, and not less than twenty-three years of age. Such members may be suspended or removed from office under the same circumstances, in the same manner, and with the same effect, as elective provincial officers, and the provisions of law providing for the suspension or removal of elective provincial officers and for the confirmation of their elections are made effective for the suspension or removal of said members of the Board and for the confirmation of their elections. In so far as they are applicable all the provisions of the Election Law are made effective as to members of the Board and to their election to the same extent as if the City of Cebu were a province and the election of said members were the election for member of the provincial board, except where there is a conflict between the provisions of the Election Law and this chapter, in which case the provisions of this charter shall prevail.

The qualified voters of the City of Cebu, thus established and created under the present Act, shall be entitled to vote in the election of the provincial governor and the members of the provincial board of the Province of Cebu, and for this purpose, the city shall continue to form part of the province.

Elections for members of the Board shall be held on the date of the general triennial election, and elected members shall take office on the sixteenth day of October next following their election, upon qualifying, and shall hold office until their successors are elected and qualified. The seven candidates receiving the greatest number of votes at any election shall be declared elected, and any tie for the seventh place shall be broken by the President of the Philippines designating from among the candidates tied for such place the one to be declared elected. If any person so elected is ineligible to hold office, or if for any reason there should be a failure to elect one or more members, no special election shall be called, but the vacancy shall be, filled for the term by the President of the Philippines with the approval of the Commission on Appointments. Vacancies in the office of member occurring after taking office shall be filled for the unexpired term in like manner.

SEC. 14. *Appointment and duties of secretary of Board.*—The Board shall have a secretary, who shall be elected by it to serve during the term of office of the then members. A vacancy in the office of secretary shall be filled temporarily or for the unexpired term in like manner. The secretary shall be in charge of the records of the Municipal Board. He shall keep a full record of the proceedings of the Board, and file all documents relating thereto; shall record, in a book kept for that purpose, all ordinances, and all resolutions and motions directing the payment of money or creating liability, enacted or adopted by the Board with the dates of passage of the same, and of the publication of ordinances, shall keep a seal, circular in form, with the inscription "Municipal Board—City of Cebu," in the center of which shall be placed the arms of the city, and affix the same, with his signature, to all ordinances and other official acts of the Board, and shall present the same for signature to the president; shall cause each ordinance passed to be published as herein provided; shall, on demand, furnish certified copies of all records of public character in his charge under the seal of his office; and collect and receive therefor such fees as may be prescribed by resolution of the Board; and shall keep his office and all records therein which are not of a confidential character open to public inspection during usual business hours. His compensation as secretary shall be fixed by the Board at not exceeding one thousand two hundred pesos a year.

SEC. 15. *Appropriations by Board*—The Board shall make all appropriations for the expenses of the government of the city. Whenever the Board fails to pass an appropriation ordinance for any year before the end of the previous year, the appropriation ordinance for such, previous year shall be deemed reenacted, and shall go into effect on the first day of January of the new year as the appropriation ordinance for that year, until a new appropriation ordinance is duly enacted.

SEC. 16. *Method of transacting business by Board—Veto—Authentication and publication of ordinances,*—Unless the Secretary of the Interior orders otherwise, the authentication Board shall hold two ordinary sessions for the transaction of business during each week on days which it shall fix by resolution, and such extraordinary sessions, not exceeding thirty during any one year, as may be called by the Mayor. It shall sit with open doors unless otherwise ordered by an affirmative vote of five members. It shall keep a record of its proceedings and determine its rules of procedure not herein set forth. . Four members of the Board shall constitute a quorum for the transaction of business, and four affirmative votes shall be necessary for the passage of any ordinance, resolution, or motion. The ayes and noes shall be taken and recorded upon the passage of all ordinances, upon all resolutions or motions directing the payment of money or creating liability, and at the

request of any member, upon any other resolution or motion. Each proposed ordinance shall be published in two newspapers of general circulation in the city and shall not be discussed or enacted by the Board until after the third day following such publication. Each ordinance enacted by the Board, and each resolution or motion directing the payment of money or creating liability, shall be forwarded to the Mayor for his approval. Within ten days after the receipt of the ordinance, resolution or motion, the Mayor shall return it with his approval or veto. If he does not return it within that time, it shall be deemed to be approved. If he returns it with his veto, his reasons therefor in writing shall accompany it. It may then be again enacted by the affirmative votes of seven members of the Board, and again forwarded to the Mayor for his approval, and if, within ten days after its receipt he does not again return it with his veto, it shall be deemed to be approved. If within said time he again returns it with his veto, it shall be forwarded forthwith to the President of the Philippines for his approval or disapproval, which shall be final. The Mayor shall have the power to veto any particular item or items of an appropriation ordinance, or of an ordinance, resolution or motion directing the payment of money or creating liability, but the veto shall not affect the item or items to which he does not object. The item or items objected to shall not take effect except in the manner heretofore provided in this section as to ordinances, resolutions and motions returned to the Board with his veto. Each approved ordinance shall be sealed with the city seal, signed by the President of the Board and the secretary, and recorded in a book kept for that purpose; shall be published in two newspapers of general circulation in the city within ten days after its approval; and shall take effect and be in force on and after the twentieth day following its publication, if no date is fixed in the ordinance. The ordinances approved by the Board shall be forwarded to the Provincial Board of the Province of Cebu for approval. In case of disapproval, the Municipal Board or the city Mayor may appeal to the Department of the Interior, the action of which shall be final. »a

SEC. 17. *General powers and duties of the Board.*—Except as otherwise provided by law, and subject to the conditions and limitations thereof, the Municipal Board shall have the following legislative powers:

- a. To provide for the levy and collection of taxes for general and special purposes in accordance with law.
- b. To fix the tariff of fees and charges for all services rendered by the city or any of its departments, branches, or officials.
- c. To provide for the erection and maintenance or the rental, in case of need, of the necessary buildings for the use of the city.
- d. To provide for the establishment and maintenance of free public schools for primary instruction and to provide schoolhouses therefor.
- e. To establish intermediate, secondary, and trade schools; and with the approval of the Director of Education, to fix reasonable tuition fees for instruction therein.
- f. To provide for the establishment and maintenance of an efficient police force for the maintenance of law and order in the city, and make all necessary police ordinances, with a view to the confinement and reformation of vagrants, disorderly persons, mendicants, and prostitutes, and persons convicted of violating any of the ordinances of the city.
- g. To maintain the municipal courts established by law which shall have jurisdiction of all criminal cases under the ordinances of the city, and such further jurisdiction as may be herein or hereafter conferred.

- h. To establish fire limits, determine the kinds of buildings or structures that may be erected within said limits, regulate the manner of constructing and repairing the same, and fix the fees for permits for the construction, repair, or demolition of buildings and structures. (i) To establish and maintain engine houses, fire engines, hose carts, hooks and ladders, and other equipment for the prevention and extinguishment of fires, and to regulate the management and use of the same.
- i. To regulate the use of lights in stables, shops, and other buildings and places, and to regulate and restrict the issuance of permits for the building of bonfires and the use of firecrackers, fireworks, torpedoes, candles, skyrockets, and other pyrotechnic displays, and to fix the fees for such permits.
- j. To make regulations to protect the public from conflagration and to prevent and mitigate the effects of famine, floods, storms, and other public calamities, and to provide relief for persons suffering from the same.
- k. To regulate and fix the amount of the license fees for the following: Hawkers, peddlers, hucksters, not including hucksters or peddlers who sell only native vegetables, fruits, or foods, personally carried by the hucksters or peddlers; auctioneers, plumbers, barbers, embalmers, collecting agencies, mercantile agencies, shipping and intelligence offices, private detective agencies, advertising agencies, massagists, tattooers, jugglers, acrobats, hotels, clubs, restaurants, cafe's, lodging houses, boarding houses, livery garages, livery stables, boarding stables, dealers in large cattle, public billiard tables, laundries, cleaning and dyeing, establishments, public warehouses, dance halls, cabarets, circus, and other similar parades, public vehicles, race tracks, horse races, bowling alleys, shooting galleries, slot machines, merry-go-rounds, pawnshops, dealers in second-hand merchandise, junk dealers, brewers, distillers, rectifiers, money changers and brokers, public ferries, theaters, theatrical performances, cinematographs, public exhibitions, circuses, and all other performances and places of amusements, and the keeping, preparation, and sale of meat, poultry, fish, game, butter, cheese, lard, vegetables, bread, and other provisions.
- l. To tax, fix the license fee for, regulate the business, and fix the location of match factories, blacksmith shops, foundries, steam boilers, lumber yards, ship yards, the storage and sale of gunpowder, tar, pitch, resin, coal, oil, gasoline, benzine, turpentine, hemp, cotton, nitroglycerin, petroleum, or any of the products thereof, and of all other highly combustible or explosive materials, and other establishments likely to endanger the public safety or give rise to conflagrations or explosions, and, subject to the provisions of ordinances issued by the Philippine Health Service in accordance with law, tanneries, renderies, tallow chandleries, bone factories, and soap factories.
- m. To tax motor and other vehicles, notwithstanding the provisions to the contrary contained in section thirteen of Act Numbered Twenty-five hundred and eighty-seven, and draft animals not paying any insular tax.
- n. To regulate the method of using steam engines and boilers, other than marine or belonging to the Government of the United States or the Philippines; to provide for the inspection thereof, and for a reasonable fee for such inspection, and to regulate and fix the fees for the licenses of the engineers engaged in operating the same.
- o. To provide for the prohibition and suppression of riots, affrays, disturbances, and disorderly assemblies; houses of ill fame and other disorderly houses; gaming houses, gambling, and all fraudulent devices for the purpose of obtaining money or property; prostitution, vagrancy, intoxication, fighting, quarreling, and all disorderly

- conduct; the printing, circulation, exhibition or sale of obscene pictures, books, or publications, and for the maintenance and preservation of peace and good morals.
- p. To prohibit, or regulate and fix the license fees for, the keeping of dogs, and to authorize their impounding and destruction when running at large contrary to ordinances, and to tax and regulate the keeping or training of fighting cocks.
 - q. To establish and maintain municipal pounds; to regulate, restrain, and prohibit the running at large of domestic animals, and provide for the distraining, impounding, and sale of the same for the penalty incurred, and the cost of the proceedings; and to impose penalties upon the owners of said animals for the violation of any ordinance in relation thereto.
 - r. To prohibit and provide for the punishment of cruelty to animals.
 - s. To regulate the inspection, weighing, and measuring, of brick, lumber, coal, and other articles of merchandise.
 - t. To provide for the laying out, construction, and improvement, and to regulate the use, of streets, avenues, alleys, sidewalks, wharves, piers, parks, cemeteries, and other public places; to provide for lighting, cleaning, and sprinkling of streets and public places; to regulate, fix license fees for, and prohibit the use of the same for processions, signs, signposts, awning, awning posts, the carrying or displaying of banners, placards, advertisements, or hand bills, or the flying of signs, flags, or banners, whether along, across, over or from buildings, along the same; to prohibit the placing, throwing, depositing, or leaving of obstacles of any kind, offal, garbage, refuse, or other offensive matter or matter liable to cause damage, in the streets and other public places, and to provide for the collection and disposition thereof; to provide for the inspection of, fix the license fees for, and regulate the openings in the same for the laying of gas, water, sewer, and other pipes, the building and repair of tunnels, sewers, and drains, and all structures in and under the same, and the erecting of poles and the stringing of wires therein; to provide for and regulate cross-walks, curbs, and gutters therein; to name streets without a name and provide for and regulate the numbering of houses and lots fronting thereon or in the interior of the blocks; to regulate traffic and sales upon the streets and other public places, to provide for the abatement of nuisances in the same and punish the authors or owners thereof; to provide for the construction and maintenance, and regulate the use, of bridges, viaducts, and culverts; to prohibit and regulate ball playing, kite flying, hoop rolling, and other amusements which may annoy persons using the streets and public places, or frighten horses or other animals; to regulate the speed of horses and other animals, motor and other vehicles, cars, and locomotives within the limits of the city; to regulate the lights used on such vehicles, cars, and locomotives; to regulate the locating, constructing, and laying of the track of horse, electric, and other forms of railroad in the streets or other public places of the city authorized by law; to provide for and change the location, grade, and crossings of railroads, and to compel any such railroad to raise or lower its tracks to conform to such provisions or changes; and to require railroad companies to fence their property, or any part thereof, to provide suitable protection against injury to persons or property, and to construct and repair ditches, drains, sewers, and culverts along and under their tracks, so that the natural drainage of the streets and adjacent property shall not be obstructed.
 - u. To provide for the construction and maintenance of, and regulate the navigation on, canals and water courses within the city and provide for the clearing and purification of the same; to provide for the construction and maintenance, and regulate the use, of

public landing places, wharves, piers, docks, and levees, and of those of private ownership; and to provide for or regulate the drainage and filling of private premises when necessary in the enforcement of sanitary ordinances issued in accordance with law.

- v. To fix the charges to be paid by all water craft landing at or using public wharves, dock, levees, or landing places.
 - w. To provide for the maintenance of waterworks for the purpose of supplying water to the inhabitants of the city, and for the purification of the source of supply and the places through which the same passes, and to regulate the consumption and use of the water; to fix and provide for the collection of rents therefor; and to regulate the construction, repair, and use of hydrants, pumps, cisterns, and reservoirs.
 - x. To provide for the establishment and maintenance and regulate the use, of public drains, sewers, latrines, and cesspools.
 - y. Subject to the provisions of ordinances issued by the Philippine Health Service in accordance with law to provide for the establishment and maintenance and fix the fees for the use of, and regulate public stables, laundries, and baths, and public markets and slaughterhouses, and prohibit the establishment or operation within the city limits of public markets and slaughterhouses by any person, entity, association, or corporation other than the city.
- (aa) To regulate, inspect, and provide measures preventing any discrimination or the exclusion of any race or races in or from any institution, establishment, or service open to the public within the city limits, or in the sale and supply of gas or electricity, or in the telephone and street-railway service; to fix and regulate charges therefor where the same have not been fixed by the National Assembly; to regulate and provide for the inspection of all gas, electric, telephone, and street-railway conduits, mains, meters, and other apparatus, and provide for the condemnation, substitution or removal of the same when defective or dangerous.
- (bb) To declare, prevent, and provide for the abatement of nuisances; to regulate the ringing of bells and the making of loud or unusual noises; to provide that owners, agents, or tenants of buildings or premises keep and maintain the same in sanitary condition, and that in case of failure to do so, after sixty days from the date of serving a written notice, the cost thereof be assessed to the owner to the extent of not to exceed sixty per centum of the assessed value, which cost shall constitute a lien against the property, and to regulate or prohibit or fix the license fees for the use of property on or near public ways, grounds, or places, or elsewhere within the city, for a display of electric signs or the erection or maintenance of billboards or structures of whatever material, erected, maintained, or used for the display of posters, signs, or other pictorial or reading matter, except signs displayed at the place or places where the profession or business advertised thereby is in whole or part conducted. (cc) To provide for the enforcement of the regulations of the Philippine Health Service, and by ordinance to prescribe penalties for violations of such regulations.
- (dd) To extend its ordinances over all waters within the city, over the Bay of Cebu three miles beyond the city limits, and over any boat or other floating structures thereon; and for the purpose of protecting and insuring the purity of the water supply of the city, over all territory within the drainage area of such water supply, and within one hundred meters of any reservoir, conduit, canal, aqueduct, or pumping station used in connection with the city water service.

(ee) To enact all ordinances it may deem necessary and proper for the sanitation and safety, the furtherance of the prosperity, and the promotion of the morality, peace, good order, comfort, convenience, and general welfare of the city and its inhabitants, and such others as may be necessary to carry into effect and discharge the powers and duties conferred by this Act; and to fix penalties for the violation of ordinances, which shall not exceed a two-hundred-peso fine or six months imprisonment, or both such fine and imprisonment, for a single offense.

(ff) To fix the number and the salaries of officials and employees of the city not otherwise provided for in this Act.

SEC. 18. *Restrictive provisions.*—No commercial sign, signboard, or billboard shall be erected or displayed on public lands, premises, or buildings. If after due investigation, and having given the owners an opportunity to be heard, the Mayor of the city shall decide that any sign, signboard, or billboard displayed or exposed to public view is offensive to the sight or is otherwise a nuisance, he may order the removal of such sign, signboard, or billboard, and if same is not removed within ten days after he has issued such order, he may himself cause its removal, and the sign, signboard, or billboard shall thereupon be forfeited to the city, and the expenses incident to the removal of the same shall become a lawful charge against any person or property liable for the erection or display thereof.

SEC. 19. *City departments.*—There shall be the following city departments over which the Mayor shall have general supervisory control:

1. Department of engineering and public works.
2. Police department.
3. Law department.
4. Fire department.
5. Department of finance.
6. Department of assessment.

The Board may from time to time make such readjustment of the duties of the several departments as the public interest may demand. The Secretary of the Interior shall have the power to consolidate any department, division or office of the city with any other department, division or office, upon the recommendation of the Mayor.

SEC. 20. *Powers and duties of heads of departments.*—Each head of department of the city government shall be in control of such department, under the direction and supervision of the Mayor, and shall possess such powers as may be prescribed herein or by ordinance. He shall certify to the correctness of all pay rolls and vouchers of his department covering the payment of money before payment, except as herein otherwise expressly provided. On or before the first day of September of each year, he shall prepare and present to the Mayor for submission to the Board an estimate of the receipts and appropriation necessary for the operation of his department during the ensuing year, and shall submit therewith such information for purposes of comparison as the Mayor may desire. He shall make to the Mayor as often as required reports covering the operations of his department.

In case of the absence or sickness, or inability to act for any other reason, of the head of one of the municipal departments, the officer next in charge of that department shall be authorized to sign all necessary papers, such as vouchers, requisitions, and so forth.

SEC. 21. *Appointment and removal of officials and employees.*—With the approval of the Commission on Appointments of the National Assembly, the President of the Philippines shall appoint the fiscal of the city and his assistant, the judge and the clerk of the Municipal Court and, in case of a temporary vacancy in such court, an acting judge therefor, the city engineer and his assistant, the chief of police and his assistant, the chief of the fire department and his assistant, the city treasurer, the city assessor, and the city superintendent of schools. Subject to the provisions of the Civil Service Law, the Mayor shall appoint all other officers and employees of the city whose appointment is not otherwise provided for by law. The Mayor may suspend, and remove, any appointive city officer or employee not appointed by the President of the Philippines, and may recommend to the President of the Philippines the suspension or removal of any city officer or employee appointed by him. Any such suspension or removal by the Mayor shall be appealable to the Department Head, whose determination of the matter shall be final.

SEC. 22. *Officers to devote time to official duties.*—Each city officer, except members of the Municipal Board, shall devote his time and attention exclusively during the usual office hours to the duties of his office, and such members shall attend the regular sessions of the Board. No city officer shall hold more than one office unless expressly so provided by law. But this section shall not apply to members of the local school board, or to other persons discharging public duties under the city or the Philippine Government who receive no compensation for their services.

SEC. 23. *Officers not to engage in certain transactions.*—It shall be unlawful for any city officer, directly or indirectly, individually or as a member of a firm, to engage in any business transaction with the city, or with any of its authorized officials, boards, agents, or attorneys, whereby money is to be paid, directly or indirectly, out of the resources of the city to such person or firm; or to purchase any real estate or other property belonging to the city, or which shall be sold for taxes or assessments, or by virtue of legal process at the suit of the city; or to be surety for any person having a contract or doing business with the city, for the performance of which security may be required; or to be surety on the official bond of any officer of the city.

ARTICLE III.—*Bureaus and Offices of the Philippine Government Performing Municipal Duties*

SEC. 24. *The Bureau of Audits.*—The Auditor General or his delegate shall receive and audit all accounts of the city, in accordance with the provisions of law relating to Government accounts and accounting.

SEC. 25. *The Purchasing Agent.*—The Purchasing Agent shall purchase and supply in accordance with law all supplies, equipment, material, and property of every kind, except real estate, for the use of the city and its departments and offices. But contracts for completed work of any kind for the use of the city, or any of its departments or offices, involving both labor and materials, where the materials are furnished by the contractor, not by the city, shall, not be deemed to be within the provisions of this section.

SEC. 26. *The Bureau of Education.*—The Director of Education shall exercise the same jurisdiction and powers in the city as elsewhere in the Islands, and the city superintendent of schools shall have all the powers and duties in respect to the schools of the city as are vested in division superintendents in respect to the schools of their divisions.

A local school board of six members for the city who shall serve without salary, shall be selected and removed in the same manner, and shall have the same powers and duties, as local school boards in municipalities.

The Municipal Board shall have the same powers in respect to the establishment of schools as are conferred by law on municipal councils.

The clerical force and assistants and laborers in the office of the city superintendent of schools shall be paid by the city, as well as the office expenses for supplies -and materials incident to carrying on said office.

SEC. 27. *Reports to the Mayor concerning schools—Construction and custody of school buildings.*—The city superintendent of schools shall make a quarterly report of the condition of the schools and school buildings of the City of Cebu to the Mayor, and such recommendations as seem to him wise in respect to the number of teachers, their salaries, new buildings to be erected, and all other similar matters, together with the amount of city revenues which should be expended in paying teachers, and improving the schools or school buildings of the city. The local school board shall make a similar quarterly report to the Mayor. The local school board shall be furnished an office and necessary clerical force by the city superintendent out of the appropriation for his office.

The care and custody of school buildings by the department of engineering and public works, and its supervision of the construction and repair of schoolhouses ordered by the Board, shall be subject to the limitations of chapter thirty-six of the Administrative Code.

SEC. 28. *The Philippine Health Service.*—The Director of Health shall have general supervision and control of health and sanitary matters and inspections in the city, and the Philippine Health Service shall serve as the local board of health.

SEC. 29. *The Bureau of Prisons.*—The Director of Prisons shall set apart a suitable portion of the provincial jail for city prisoners, and shall receive for confinement and detention all persons who have been sentenced to imprisonment by the Municipal Court of the city. The expense of maintaining such portion of the prison shall be paid out of city funds.

ARTICLE IV.—*The Department of Engineering and Public Works*

SEC. 30. *Powers and duties of city engineer.*—There shall be a city engineer, who shall be in charge of the department of engineering and public works and shall receive a salary of three thousand six hundred pesos per annum. He shall have charge of all the surveying and engineering work of the city, and shall perform such services in connection with public improvements, or any work entered upon or projected by the city, or any department thereof, as may require the skill and experience of a civil engineer. He shall ascertain,

record, and establish monuments of the city survey and from thence extend the surveys of the city, and locate, establish, and survey all city property, and also private property abutting on the same, whenever directed by the Mayor; shall prepare and submit plans, maps, specifications, and estimates for buildings, streets, bridges, docks, and other public works, and supervise the construction and repair of the same; shall make such tests and inspection of engineering materials used in construction and repair as may be necessary to protect the city from the use of materials of a poor or dangerous quality; shall inspect and report upon the condition of public property and public works whenever required by the Mayor; shall have the care and custody of all public buildings, when erected, including markets and slaughterhouses and all buildings rented for city purposes, and of any system now or hereafter established for lighting the streets, public places, and public buildings of the city; shall prevent the encroachment of private buildings and fences on the streets and public places of the city; shall inspect and supervise the construction, repair, removal, and safety of private buildings, and regulate and enforce the numbering of houses, in accordance with the ordinances of the city; shall have the care of all public streets, parks, and bridges; shall maintain, clean, sprinkle, and regulate the use of the same for all purposes as provided by ordinance; shall collect and dispose of all garbage, refuse, the contents of closets, vaults, and cesspools, and all other offensive and dangerous substances within the city; shall have the care and custody of all public docks, wharves, piers, levees, and landing places, when erected; shall have general supervision and inspection of all private docks, wharves, piers, levees, and landing places, and other property bordering on the harbor, river, esteros, and waterways of the city, and shall issue permits for the construction, repair, and removal of the same, and enforce all ordinances relating to the same; shall have the care and custody of the public system of waterworks and sewers, and all sources of water supply, and shall control, maintain, and regulate the use of the same, in accordance with the ordinances relating thereto; shall inspect and regulate, subject to the approval of the Mayor, the use of all private systems for supplying water to the city and its inhabitants, and all private sewers and their connections with the public sewer system. He shall file and preserve all maps, plans, notes, surveys, and other papers and documents pertaining to his office. He shall supervise the laying of mains and connections for the purpose of supplying gas to the inhabitants of the city. He shall have power, subject to the approval of the Mayor, to cause buildings dangerous to the public to be made secure or torn down, and shall supervise and regulate the location and use of engines, boilers, forges, and other manufacturing and heating appliances in accordance with law and ordinance relating thereto. He is authorized to charge, at rates to be fixed by the Board with the approval of the Department Head, for sanitation and transportation services and supplies furnished by his department.

With the previous approval of the Mayor in each case, he may order the removal of buildings and structures erected in violation of the ordinances, or the removal of the materials employed in the construction or repair of any building or structure made in violation of said ordinances.

SEC. 31. *Assistants and employees in city engineer's office.*—To assist the city engineer in the discharge of his official duties, there shall be an assistant engineer, superintendents, and other employees as are from time to time provided for in appropriation ordinances. The assistant engineer shall receive a salary of two thousand four hundred pesos per annum.

ARTICLE V.—*The Police Department*

SEC. 32. *Powers and duties of chief of police.*—There shall be a chief of police who shall have charge of the police department and everything pertaining thereto, including the organization, government, discipline, and disposition of the city police and detective force; shall investigate, under the direction of the Mayor, any complaints filed against members of the police and report the result of his investigation to the Mayor, making whatever recommendations he may deem pertinent, for such action as said officer may consider necessary; shall quell riots, disorders, disturbances of the peace, and shall arrest and prosecute violators of any law or ordinance; shall exercise police supervision over all land and water within the police jurisdiction of the city; shall be charged with the protection of the rights of persons and property wherever found within the jurisdiction of the city, and shall arrest without warrant, when necessary to prevent the escape of the offender, violators of any law or ordinance, and all who obstruct or interfere with him in the discharge of his duty; shall be responsible for the safe-keeping of all prisoners until they shall be released from custody, in accordance with law, or deliver to the warden of the proper prison; may take good and sufficient bail for the appearance before the city court of any person arrested for violation of any city ordinance: Provided, however, That he shall not exercise this power in cases of violations of any penal law, except when the fiscal of the city shall so recommend and fix the bail to be required of the person arrested; shall have authority, within the police jurisdiction of the city, to serve and execute criminal processes of any court; shall, either in person or by deputy, attend all sessions of the city courts, and shall promptly and faithfully execute all orders of the Mayor, and all writs and processes of the city courts and all criminal processes of the Court of First Instance of Cebu, when placed in his hands for that purpose. He shall have such further powers and perform such further duties as may be prescribed by law or ordinance. The chief of police shall receive a salary of two thousand four hundred pesos per annum.

SEC. 33. *Assistant chief of police.*—There shall be an assistant chief of police whose duties shall be to act as chief of police in the absence or inability to act of the chief of police, and under the direction of such chief to look after the discipline of the police force and to perform such other duties as may be imposed upon him by the chief or prescribed by law or ordinance. He shall receive a salary of one thousand eight hundred pesos per annum.

SEC. 34. *Chief of secret service.*—There shall be a chief of the secret service who shall, under the chief of police, have charge of the detective work of the department and of the detective force of the city, and shall perform such other duties as may be assigned to him by the chief of police or prescribed by law or ordinance. He shall receive a salary of one thousand eight hundred pesos per annum.

SEC. 35. *Police and other peace officers—Their powers Wand duties.*—The Mayor, the chief and assistant chief of police, the chief of the secret service, and all officers and members of the city police and detective force shall be peace officers. Such peace officers are authorized to serve and execute all processes of the Municipal Court and criminal processes of all other courts to whomsoever directed, within the jurisdictional limits of the city or within the police limits as hereinbefore defined; within the same territory, to pursue and arrest, without warrant, any person found in suspicious places or under suspicious circumstances reasonably tending to show that such person has committed, or is about to

commit, any crime or breach of the peace; to arrest or cause to be arrested, without warrant, any offender when the offense is committed in the presence of a peace officer or within his view; in such pursuit or arrest to enter any building, ship, boat, or vessel, or take into custody any person therein suspected of being concerned in such crime or breach of the peace, and any property suspected of having been stolen; and to exercise such other powers and perform such other duties as may be prescribed by law or ordinance. They shall detain an arrested person only until he can be brought before the proper magistrate. Whenever the Mayor shall deem it necessary, to avert danger or to protect life and property, in case of riot, disturbance, or public calamity, or when he has reason to fear any serious violation of law and order, he shall have power to swear in special police, in such numbers as the occasion may demand. Such special police shall have the same powers while on duty as members of the regular force.

SEC. 36. *Uniforms.*—Each officer and member of the police force shall be required to pay for his own uniform.

ARTICLE VI.—*The Law Department and the Courts*

SEC. 37. *The fiscal of the city—His assistant—His duties.*—The law department shall consist of the fiscal of the city and one assistant, who shall discharge their duties under the general supervision of the Secretary of Justice. The fiscal of the city shall be the chief legal adviser of the city and all offices and departments thereof; shall represent the city in all civil cases wherein the city or any officer thereof in his official capacity is a party; shall attend, when required, meetings of the Board, draw ordinances, contracts, bonds, leases, and other documents involving any interest of the city, and inspect and pass upon all such documents already drawn; shall give his opinion in writing when requested by the Mayor or Board upon any question relating to the city, or the rights or duties of any city officers: shall, whenever it is brought to his knowledge that any city officer or employee is guilty of neglect or misconduct in office, or that any person, firm, or corporation holding or exercising any franchise or public privilege from the city has failed to comply with any condition, or to pay any consideration mentioned in the grant of such franchise or privilege, investigate the same and report to the Mayor; shall, when directed by the Mayor, institute and prosecute in the city's interest a suit on any bond, lease, or other contract, and upon any breach or violation thereof; and shall prosecute and defend all civil actions related to or connected with any city office or interest. He shall also have charge of the prosecution of all crimes, misdemeanors, and violation of city ordinances, in the Court of First Instance of Cebu and the Municipal Court of the city, and shall discharge all the duties in respect to criminal prosecutions enjoined by law upon provincial fiscals.

The fiscal of the city shall cause to be investigated all charges of crimes, misdemeanors, and violations of ordinances, and have the necessary informations or complaints prepared or made against the persons accused. He or his assistant may conduct such investigations by taking oral evidence of reputed witnesses, and for this purpose may, by subpoena, summon witnesses to appear and testify under oath before him, and the attendance or evidence of an absent or recalcitrant witness may be enforced by application to the Municipal Court or the Court of First Instance. No witness summoned to testify under this section shall be under obligation to give any testimony tending to incriminate himself, and no testimony elicited from a witness by such- examination under oath before the fiscal of the city or his assistant under this section shall be used against such witness in any

prosecution pending or thereafter instituted against him.

The fiscal of the city shall also cause to be investigated the causes of sudden deaths which have not been satisfactorily explained and when there is suspicion that the causes arose from the unlawful acts or omissions of other persons, or from foul play. For that purpose, he may cause autopsies to be made and shall be entitled to demand and receive for purposes of such investigations or autopsies, the aid of the Health authorities stationed in Cebu. In case the fiscal of the city deems it necessary to have further expert assistance for the satisfactory performance of his duties in relation with medico-legal matters or knowledge including the giving of medical testimony in the courts of justice, he shall request the same from the head of the department of legal medicine of the College of Medicine and Surgery of the University of the Philippines, who shall thereupon furnish the assistance required, in accordance with his powers and facilities. He shall at all times render such professional services as the Mayor or Board may require, and shall have such powers and perform such other duties as may be prescribed by law or ordinance.

The fiscal of the city and his assistant shall receive the salaries hereinafter set forth, which shall be paid by the City of Cebu: fiscal of the city, three thousand six hundred Pesos per annum; assistant fiscal, three thousand pesos per annum.

SEC. 38. *Regular and acting judges of Municipal Court.*—There shall be a Municipal Court for the City of Cebu, which a judge shall be appointed, to be known as judge of the Municipal Court.

The Municipal Court shall have the same jurisdiction in civil and criminal cases and the same incidental powers as at present conferred by law upon justice of the peace courts and such additional jurisdiction and powers as may hereafter be conferred upon them by law.

In case of absence, sickness or incapacity of the judge of the Municipal Court and in case of vacancy in said office, the Secretary of Justice may designate any assistant fiscal in the office of the provincial fiscal of Cebu to act as judge of the Municipal Court of the City of Cebu with all the powers of a regular judge of said court; but such acting judge shall not receive any additional compensation during the time he is acting as judge.

SEC. 39. *Duties of clerk of Municipal Court.*—The clerk of the Municipal Court shall keep its seal and affix it to all orders, judgments, certificates, records, and other documents issued by the court. He shall keep a docket of the trials in the court, in which he shall record in a summary manner the name of the defendant, the charge against him, the name of the prosecuting witness, the date of the arrest, the appearance of the defendant, the date of the trial, and the nature of the judgment, together with the fines and costs adjudged or collected in accordance with the judgment. He shall have the power to administer oaths.

SEC. 40. *Jurisdiction of Municipal Court.*—The Municipal Court shall have territorial jurisdiction embracing the entire police jurisdiction of the city, and shall hold a daily session, Sundays and legal holidays alone excepted. Said court shall have exclusive original jurisdiction over all criminal cases arising under the ordinances of the city, and over all criminal cases arising under the penal laws of the Philippines, where the offense is committed within the police jurisdiction of the city and the maximum punishment is by imprisonment for not more than six months, or a fine of not more than two hundred pesos,

or both. It shall also have, concurrent jurisdiction with the Court of First Instance over all criminal cases arising under the laws relating to gambling and management of lotteries, to assaults where the intent to kill is not charged or evident upon the trial, to larceny, embezzlement and estafa where the amount of money or property stolen, embezzled or otherwise involved does not exceed the sum or value of two hundred pesos, to the sale of intoxicating liquors, to falsely impersonating an officer, to malicious mischief, to trespass on Government or private property, and to threatening to take human life. It may also conduct preliminary investigation for any offense, without regard to the limits of punishment, and may release, or commit and bind over any person charged with such offense to secure his appearance before the proper court.

SEC. 41. *Incidental powers of Municipal Court.*—The Municipal Court shall have power to administer oaths and to give certificates thereof; to issue summonses, writs, warrants, executions, and all other processes necessary to enforce its orders and judgments; to compel the attendance of witnesses; to punish contempts of court by fine or imprisonment, or both, within the limitations imposed by the Code of Civil Procedure; and to require of any person arrested a bond for good behavior or to keep the peace, or for the further appearance of such person before a court of competent jurisdiction. But no such bond shall be accepted unless it be executed by the person in whose behalf it is made, with sufficient surety or sureties, to be approved by said court.

SEC. 42. *Procedure in Municipal Court in prosecutions for violation of laws and ordinances.*—In a prosecution for the violation of any ordinance, the first process shall be a summons; except that a warrant for the arrest of the offender may be issued in the first instance upon the affidavit of any person that such ordinance has been violated, and that the person making the complaint has reasonable grounds to believe that the party charged is guilty thereof, which warrant shall conclude: "Against the ordinances of the city in such case made and provided." All proceedings and prosecutions for offenses against the laws of the "Philippines shall conform to the rules relating to process, pleading, practice, and procedure for the judiciary of the Philippines, and such rules shall govern the Municipal Court and its officers in all cases in so far as the same may be applicable.

SEC. 43. *Costs, fees, fines, and forfeitures in Municipal Court.*—There shall be taxed against and collected from the defendant, in case of his conviction in the Municipal Court, such costs and fees as may be prescribed by the Board not exceeding those charged in criminal cases in justices' courts. All costs, fees, fines, and forfeitures shall be collected by the clerk of court, who shall keep a docket of those imposed and of those collected, and shall pay collections of the same to the city treasurer for the benefit of the city, on the next business day after the same are collected, and take receipts therefor. The judge shall examine said docket each day, compare the same with the amount receipted for by the city treasurer, and satisfy himself that all such costs, fees, fines, and forfeitures have been duly accounted for.

SEC. 44. *No person sentenced by Municipal Court to be —no person sentenced confined without commitment.*—No person shall be confined in the city prison by sentence of the Municipal Court until the warden or officer in charge of the prison shall receive a written commitment showing the offense for which the prisoner was tried, the date of the trial, the exact terms of the judgment or sentence, and the date of the order of the commitment. The clerk shall, under seal of the court, issue such a commitment in each case of sentence to

imprisonment.

SEC. 45. *Procedure on appeal from Municipal Court to —procedure on appeal Court of First Instance.*—An appeal shall lie to the Court of First Instance in all cases where fine or imprisonment, or both, is imposed by the Municipal Court. The party desiring to appeal shall, before six o'clock postmeridian of the day after the rendition and entry of the judgment by the Municipal Court, file with the clerk of the court a written statement that he appeals to the Court of First Instance. The filing of such statement shall perfect the appeal. The judge of the court from whose decision appeal is taken shall, within five days after the appeal is taken, transmit to the clerk of the Court of First Instance a certified copy of the record of proceedings and all the original papers and process in the case, and the clerk of the Court of First Instance shall docket the appeal in that court. A perfected appeal shall operate to vacate the judgment of the Municipal Court, and the action, when duly entered in the Court of First Instance, shall stand for trial de novo upon its merits in accordance with the regular procedure in that court, as though the same had never been tried and had been originally there commenced. Pending an appeal, the defendant shall remain in custody unless released in the discretion of the judge of the Municipal Court or of the judge of the Court of First Instance, upon sufficient bail, in accordance with the rules and regulations now or hereinafter enforced, to await the judgment of the appellate court.

SEC. 46. *Persons arrested to be promptly brought before a court—Preliminary investigations in Municipal Court and Court of First Instance.*—Every person arrested shall, without unnecessary delay, be brought before the Municipal Court, or the Court of First Instance for preliminary hearing, release on bail, trial. In cases triable in the Municipal Court the defendant shall not be entitled as of right to a preliminary examination, except a summary one to enable the court to fix the bail, in any case where the prosecution announces itself ready and is ready for trial within three days, not including Sundays, after the request for an examination is presented. In cases triable only in the Court of First Instance the defendant shall not be entitled as of right to a preliminary investigation in any case where the fiscal of the city, after a due investigation of the facts, shall have presented an information against him in proper form. But the Court of First Instance may make such summary investigation into the case as it may deem necessary to enable it to fix the bail or to determine whether the offense is bailable.

SEC. 47. *Assessors in the courts in the city.*—The aid of assessors in the trial of any civil or criminal action in the Municipal Court, or the Court of First Instance, within the city, may be invoked in the manner provided in the Code of Civil Procedure. It shall be the duty of the Municipal Board to prepare one list of the names of twenty-five residents of the city best fitted by education, natural ability, and reputation for probity to sit as assessors in the trial of action in the Municipal Court and a like list of persons to sit as assessors in the trial of action in the Court of First Instance. The Board may at any time strike any name from the list so prepared by reason of the death, permanent disability, or unfitness of the person named; and in case names are so stricken out, other names shall be added in their place, to be selected as in this section provided. Parties desiring, to avail themselves of the use of assessors in the Municipal Court shall proceed as provided in sections fifty-eight to sixty-two, inclusive, of the Code of Civil Procedure, and the method of summoning assessors and the compensation and oath and duties of assessors shall be as provided in those sections. Parties desiring to avail themselves of the use of assessors in the Court of First

Instance shall proceed as provided in sections one hundred and fifty-four to one hundred and sixty-one, inclusive, of the Code of Civil Procedure; and the method of summoning assessors, enforcing their attendance, excusing them from attendance;-their compensation, oath, and effect of dissent from the opinion of the judge shall be as provided in the last-named sections.

ARTICLE VII.—*The Fire Department*

SEC. 48. *Powers and duties of chief of fire department.*—There shall be a chief of the fire department, who shall have Department, the management and control of all matters relating to the administration of said department, and the organization, government, discipline, and disposition of the fire force; shall have charge of fire-engine houses, fire engines, hose carts, hooks and ladders, trucks, and all other fire apparatus ; shall have .full police powers in the vicinity of fires; shall have authority to remove any building or other property whenever it shall become necessary to prevent the spreading of fire or to protect adjacent property; shall investigate and report to the Mayor upon the origin and cause of all fires occurring within the city; shall inspect all buildings erected or under construction or repair within the city and determine whether they provide sufficient protection against fire and comply with the ordinances relating thereto; shall have charge of the city telegraph, telephone, and fire alarm service; shall supervise and regulate the stringing, grounding, and installation of wires for all electrical connections with a view to avoiding conflagrations, interference with public traffic or safety, or the necessary operations of the fire department; shall supervise and regulate the manufacture, storage, and use of petroleum, gas, acetylene, gunpowder, and other highly combustible matter and explosives; and shall see that all ordinances relating to those subjects or any of them, are enforced. The chief of the fire department shall receive a salary of three thousand pesos per annum.

ARTICLE VIII.—*Department of Finance*

SEC. 49. *Powers and duties of the city treasurer.*

- a. There shall be a city treasurer, who shall have charge of the department of finance and shall act as chief fiscal officer and financial adviser of the city and custodian of its funds. Also he shall act as city assessor in charge of the department of assessment when so designated by the Department Head.
- b. The city treasurer shall exercise the function of municipal collector of taxes and shall collect all taxes and assessments due the city, all licenses authorized by law or ordinance, and all rents due for lands, markets, and other property owned by the city, and shall receive and receipt for all costs, fees, fines and forfeitures imposed by the Municipal Court, from the clerk thereof, and the fees collected by the sheriff or his deputies.
- c. He shall collect all miscellaneous charges made by the department of engineering and public works and by other departments of the city government, and all charges made by the city engineer for inspections, permits, licenses, and the installation, maintenance, and services rendered in the operation of the private privy system.
- d. He shall collect, as deputy of the Collector of Internal Revenue, by himself or deputies, all taxes and charges imposed by the Philippine Government upon property

or persona in the City of Cebu, depositing daily such collections in any depository bank of the Government.

- e. Unless otherwise specifically provided by law or regulations, he shall perform in and for the city the duties imposed by law or regulation upon provincial treasurers generally, as well as the other duties imposed upon him by law.
- f. He shall purchase and issue all supplies, equipment or other property required by the city, through the Purchasing Agent, or otherwise, as may be authorized, subject to the general provisions of law relating thereto.
- g. He shall be accountable for all funds and property of the city and shall render such accounts in connection therewith as may be prescribed by the Auditor General.
- h. He shall deposit daily all municipal funds and collections in any bank duly designated as Government depository.
- i. On or before the first day of September of each year, the city treasurer shall present to the Mayor a certified detailed statement by departments of all receipts and expenditures of the city pertaining to the preceding fiscal year, and to the current fiscal year to and including July thirty-first, together with an estimate of the receipts and expenditures for the remainder of the current fiscal year; and he shall submit with this statement a detailed estimate of the revenues and receipts of the city from all sources for the ensuing fiscal year. Upon receipts of this statement and estimate and the estimates of department heads as required by section twenty of this charter the Mayor shall formulate and submit to the Municipal Board before the sixteenth day of October next following, a detailed budget covering the estimated necessary expenditures for the ensuing fiscal year; and the Municipal Board shall thereupon make detailed appropriations covering such estimated expenditures: *Provided, however,* That in no case shall the aggregate amount of such appropriations exceed the estimate of revenues and receipts submitted by the city treasurer as provided above. Supplemental budget formulated in the same manner may be adopted when special or unforeseen circumstances make such action necessary. Without further action by the Municipal Board, disbursements of municipal funds may be made by the city treasurer, out of the authorized appropriations, upon properly executed vouchers bearing the approval of the chiefs of the departments concerned, and on or before the twenty-fifth day of each month said city treasurer shall furnish the Mayor and the Municipal Board for their administrative information a statement of the appropriations, expenditures and balances of all funds and accounts as of the last day of the month preceding.

The salary of the city treasurer shall be three thousand six hundred pesos per annum.

ARTICLE IX.—*Department of Assessment*

SEC. 50. *Powers and duties of the city assessor.*—There shall be a city assessor, who shall have charge of the department of assessment. The city assessor and his authorized deputies, who are empowered to administer any oath authorized to be administered in connection with the valuation of real estate for the assessment or collection of taxes, shall appraise and value all the real estate; in the city, and assess for taxation all such real estate not expressly exempt, except machines, mechanical contrivance instruments, tools, implements, appliances, apparatus, and paraphernalia used for industrial, agricultural, or manufacturing purposes, which shall be excluded from such valuation and assessment whether or not attached to lands or buildings. He shall prepare and file with the city

treasurer a list of the real estate so valued which is exempt from taxation and a separate list of-the taxable real estate.

SEC. 51. *Real estate exempt from taxation.*—The following shall be exempt from taxation:

- a. Lands or buildings owned by the United States of America, the Government of the Philippine Islands, or the City of Cebu, and burying grounds, churches and their adjacent parsonages, and conventos, and lands or buildings used exclusively for religious, charitable, scientific, or educational purposes, and not for profit; but such exemption shall not extend to lands or buildings held for investment, though the income therefrom be devoted to religious, charitable, scientific, or educational purposes.
- b. Lands or buildings which are the only real property of the owner, and the value of which does not exceed one hundred pesos.

SEC. 52. *List of taxable real estate, how made—Examination of witnesses and register of deeds records.*—The city assessor shall make the list of the taxable real estate in the city by districts, and the names of the owners in each district shall be arranged in the order of the lot and block numbers with a brief description opposite each such name of the property owned by such owners and the cash value thereof. In making this list, the city assessor shall take into consideration any sworn statement made by the owners of the property, but shall not be prevented thereby from considering other evidence on the subject and exercising his own judgment in respect thereto. For the purpose of completing this list, he and his authorized representatives are empowered to enter upon the real estate for the purpose of examining and measuring the same, and to summon witnesses, administer oaths to them, and subject them to examination concerning the ownership and the amount of real estate in each district and its cash value. It shall be the duty of the city assessor so far as is necessary, to examine the records of the office of the register of deeds showing the ownership of real estate in the city.

SEC. 53. *Declaration to be made by persons acquiring or improving real estate.*—It shall be the duty of each person who at any time acquires real estate in. the city, and of each person who constructs or adds to any improvement on real estate owned by him within the city, to prepare and present to the city assessor within a period of sixty days next succeeding the completion of such acquisition, construction or addition, a sworn declaration setting forth the value of the real estate acquired or the improvement construed or addition made by him and containing a description of such property sufficient to enable the city assessor readily to identify the same. Any person who fails to make and present such declaration of real estate newly acquired by him within the said period of sixty days shall be deemed to have waived his right to notice of the assessment of such property and the assessment of the same in the name of its former owner shall, in all such cases, be valid and binding on all persons interested, and for all purposes, as though the same had been assessed in the name of its actual owner.

SEC. 54. *Action when owner makes no return, or is unknown or in doubt, or when land and improvements are separately owned.*—If the owner of any parcel of real estate shall fail to make a return thereof, or if the city assessor is unable to discover the owner of any real estate, he shall nevertheless list the same for taxation, and charge the tax against the true owner, if known, and if unknown then as against an unknown owner. In case of doubt

or dispute as to ownership of real estate, the taxes shall be levied against the possessor or possessors thereof. When it shall appear that there are separate owners of the land and the improvements thereon, a separate assessment of the property of each shall be made.

SEC. 55. *Action in case real estate has escaped taxation.*—If it shall come to the knowledge of the city assessor that any taxable real estate in the city has escaped listing, it shall be his duty to lease and value the same at the time and in the manner provided in the next succeeding section and to charge against the owner thereof the taxes due for the current year and for all other years since the original assessment under the city charter was made, and the taxes thus assessed shall be legal, and collectible by all the remedies herein provided, and if the failure of the city assessor to assess such taxes at the time when they should have been assessed was due to any fault or negligence on the part of the owner of such property, then penalties shall be added to such back taxes as though they had been assessed at the time when they should have been assessed.

SEC. 56. *When assessment may be increased or reduced.*—The city assessor shall, during the first fifteen days of December of each year, add to his list of taxable real estate in the city the value of the improvements placed upon such property during the preceding year, and any property which is taxable and which has theretofore escaped taxation. He may during the same period revise and correct the assessed value of any or all parcels of real estate in the city which are not assessed at their true money value, by reducing or increasing the existing assessments as the case may be. He shall give notice by publication for ten days prior to December first in two newspapers of general circulation published in the city, that he will be present in his office for that purpose on said days, and he shall further notify in writing each person the amount of whose tax will be changed by such action or such proposed change, by delivering or mailing such notification to such person or his authorized agent at the last known address of such owner or agent in the Philippines sometime in the month of November.

SEC. 57. *City assessor to authenticate list of real estate assessed.*—The city assessor shall authenticate each list of real estate valued and assessed by him as soon as the same is completed, by signing the following certificate at the foot thereof:

"I hereby certify that the foregoing list contains a true statement of the piece or pieces of taxable real estate be longing to each person named in the list, and its true cash value, and that no real estate taxable by law in the City of Cebu has been omitted from the list, according to the best of my knowledge and belief.

“.....”
(Signature)

SEC. 58. *Time and manner of appealing to board of tax appeals.*—In case the Municipal Board, or any owner of real estate or his authorized agent, shall feel aggrieved by any decision of the city assessor under the preceding sections of this article, such Board, owner or agent may, within ten days after the entry of such decision, appeal to the board of tax appeals. The appeal shall be perfected by filing a written notice of the same with the city assessor and it shall be the duty of that officer forthwith to transmit the appeal to the board of tax appeals with all written evidence in his possession relating to such assessment and valuation.

SEC. 59. *Constitution and compensation of board of tax appeals.*—The board of tax appeals shall be composed of five members who shall be appointed by the President of the Philippines with the approval of the Commission on Appointments on the first day of January of each odd numbered year, three of whom shall be owners of real estate in the city, of which number, two shall be selected from a list of ten persons to be submitted to the President of the Philippines by the "Asociation de Propietarios de Cebu," which list shall be submitted to him by the said association not later than the fifteenth day of December of each even numbered year. Should the said list not be submitted by the aforesaid association within the time fixed herein, the President of the Philippines shall select such two members in his own discretion.

The members of the board of tax appeals, except those serving *ex officio* and the chairman, shall receive a compensation of five pesos for each day on which they attend the sessions and serve as members of the board.

The chairman of the board of tax appeals shall be designated in the appointment of the President and shall receive fifteen pesos for each day on which he attends the sessions. The secretary of the board shall be appointed "by the chairman thereof, with the concurrence of a majority of its members and shall keep the records of the proceedings of the board. The secretary shall receive such salary as the board may fix.

SEC. 60. *Oath to be taken by members of board of tax of appeals.*—Before organizing as such, the members of the board of tax appeals shall take the following oath before a justice of the peace or some other officer authorized to administer an oath in the city:

"I do solemnly swear (or affirm) that I will well and truly hear and determine all matters and issues between taxpayers and the city assessor submitted for my decision. So help me God. (In case of affirmation the last four words to be stricken out.)

"....."
(Signature)

"Subscribed and sworn to (or affirmed) before me this ____ day of _____,
19.....

"....."
(Signature of officer administering oath)

The oath of each member shall be recorded by the secretary of the board in the minutes of its proceedings.

SEC. 61. *Proceedings before board of tax appeals.*—The board of tax appeals shall meet on the second Monday in January of each year, shall hear all appeals duly transmitted to it, shall decide the same forthwith, and shall complete its work and adjourn on or before the thirty-first day of March of each year unless its sessions for any given year are extended to a later date by direction of the Department Head. It shall have authority to cause to be amended the listing and valuation of the property in respect to which any appeal has been

perfected by order signed by the board or a majority thereof, and transmit it to the city assessor who shall have the tax 1st in conformity with said order. It shall also have power to revise and correct, with the approval of the Department Head first had, any and all erroneous or unjust assessments and valuations for taxation, and make a correct and just assessment, and state the true valuation, in each case where it decides that the assessment previously made is erroneous or unjust. The list when so corrected shall be as lawful and valid for all purposes as though the assessments had been made within the time herein prescribed. Such reassessments and revaluation shall be made in due notice to the individual concerned and he shall be entitled to be heard by the board of tax appeals before any reassessment or revaluation is made. The decision of the board of tax appeals shall be final unless the head of the Department of the Interior forthwith declares the decision reopened for a review by him in which case he ,au make such revision or revaluation as in his opinion the circumstances justify. Such decision, approved by the President, shall be final.

SEC. 62. *Annual tax and penalties—Extension, remission of the payment of the tax.*—An annual tax of seven-eighths of one per centum on the assessed value of all real estate in the city subject to taxation as hereinbefore provided is hereby levied. All taxes shall be due and payable on or before the thirtieth day of June of each year, and if any tax payer shall fail to pay the taxes assessed against him on or before the thirtieth day of June of the year for which such taxes are due, he shall be delinquent in such payment and shall be subject, as a penalty for such delinquency, to an additional tax of twenty per centum of the amount of the original tax if both the original and the additional tax be paid during the first six months of such delinquency, and if not so paid, to an additional tax of twenty-five per centum of the amount of the original tax; the additional tax to be collected at the same time and in the same manner as the original tax.

At the option of the taxpayer, the tax due for any year may be paid in two installments, the first of such installments to consist of seven-twelfths of one per centum of the assessed valuation of the property and the second to consist of the remainder of the tax for the year. In such cases the first installment must be paid on or before the thirtieth day of June of the year for which the tax is due, and the second may be paid at any time prior to the first day of January of the following year, but if the first installment of the tax for any year is not paid on or before the thirtieth day of June of such year, then the whole of that year's tax shall be delinquent and the penalty due thereon as herein before provided. If any taxpayer, having paid the first installment of his tax for any year, shall fail to pay the second installment thereof before the first day of January of the following year, the penalty collected shall be twenty per centum of the amount of such second installment during the first six months of said following year, and thereafter twenty-five per centum of such amount.

The penalties thus imposed shall be accounted for by the city treasurer in the same manner as the tax. In the event that such tax and penalty shall remain unpaid for fifteen days after the tax becomes delinquent the city treasurer shall proceed to make collection thereof in the manner hereinafter prescribed.

The Municipal Board may extend the time for the collection of the tax on real estate in the City of Cebu for a period not to exceed three months. It may also remit all or part of the tax on real estate or the penalties thereon during the ensuing year in case there are good

and sufficient reasons for it. The resolution in any such case shall not take effect until it has been approved by the President of the Philippines.

The President may, in his discretion, extend the time for the collection of the tax on real estate in Cebu until a date within the same calendar year and may also remit or reduce the tax on real estate during any year if he deems this to be in the public interest.

SEC. 63. Proceedings for seizure and sale of delinquent's personal property to satisfy tax, penalty, and costs.—Fifteen days after the tax shall become delinquent the city assessor shall prepare and sign a certified copy of the records of his office showing the persons delinquent in payment of their taxes and the amounts of tax and penalty respectively due from them. He may thereupon proceed to seize the personal property of each delinquent not exempt under the provisions of the next succeeding section, and, unless redeemed as hereinafter provided, to sell at public auction, either at the main entrance of the municipal building or at the place where such property is seized, as he shall determine, so much of the same as shall satisfy the tax, penalty, and costs of seizure and sale, to the highest bidder for cash after due advertisement by notice posted for ten days at the main entrance of the municipal building and at a public and conspicuous place in the district where the property was seized, stating the time, place, and cause of sale. The certified copy of the city assessor's record of delinquents shall be his warrant for his proceedings, and the purchaser at such sale shall acquire an indefeasible title to the property sold. Within two days after the sale the city assessor shall make return of his proceedings and spread it upon his records. Any surplus resulting from the sale, over and above the tax, penalty, and costs, shall be returned to the taxpayer on account of whose delinquency the sale has been made.

SEC. 64. Personal property exempt from seizure and sale for delinquency.—The following personal property shall be exempt from seizure and sale for delinquency in the payment of the real-estate tax:

- a. Tools and implements necessarily used by the delinquent in his trade or employment.
- b. One horse or cow, or carabao, or other beast of burden, such as the delinquent may select, and necessarily used by him in his ordinary occupation.
- c. His necessary clothing, and that of all his family.
- d. Household furniture and utensils necessary for housekeeping, and used for that purpose by the delinquent, such as he may select, of a value not exceeding seventy-five pesos.
- e. Provisions actually provided for individual or family use sufficient for three months.
- f. The professional libraries of lawyers, judges, clergymen, doctors, school-teachers, and music teachers, not exceeding five hundred pesos in value.
- g. One fishing boat and net, not exceeding the total value of twenty-five pesos, the property of any fisherman, by the lawful use of which he earns a livelihood.

SEC. 65. Owner may redeem personal property before sale.—The owner of the personal property seized may redeem the same from the collecting officer at any time after seizure and before sale by tendering to him the amount of the tax, the penalty, and the costs incurred up to the time of tender. The costs to be charged in making such seizure and sale shall only embrace the actual expense of seizure and preservation of the property pending the sale, and no charge shall be imposed for the services of the collecting officer or his deputy.

SEC. 66. *Taxes and penalties constitute a lien on real estate.*—Taxes and penalties assessed against realty shall constitute a lien thereon, which shall be superior to all other liens, mortgages, or incumbrances of any kind whatsoever; shall be enforceable against the property whether in the possession of the delinquent or any subsequent owner, and can only be removed by the payment of the tax and penalty. A lien upon real estate for taxes levied for each year shall attach on the first day of January of such year.

SEC 67. *Procedure for sale of real estate for taxes, etc.*—In addition to the procedure prescribed in section sixty-three of this charter, the city assessor may, upon the warrant of the certified record required in said section, not less than twenty days after delinquency, advertise the real estate of the delinquent for sale, or so much thereof as may be necessary to satisfy all public taxes upon said property as above, with penalties and costs of sale, for a period of thirty days.

The advertisement shall be by posting a notice at the main entrance of the municipal building and in a public and conspicuous place in the district in which the real estate lies, and by publication once a week, for three weeks, in two newspapers of general circulation published in the city. The advertisement shall state the amount of the taxes and penalties so due, the time and place of sale, the name of the taxpayer against whom the taxes are levied, and the approximate area, the lot and block number, the location by district and street, and the street number, if the property has a street number, of the real estate to be sold. At any time before the day fixed for the sale the taxpayer may discontinue all proceedings by paying the taxes, penalties and costs to the city assessor. If he does not do so the sale shall proceed and shall be held either at the main entrance of the municipal building or on the premises to be sold, as the city assessor may determine. Within five days after the sale the city assessor shall make return of the proceedings and spread it on his records. The purchaser at the sale shall receive a certificate from the city assessor from his records, showing the proceedings of the sale, describing the property sold, stating the name of the purchaser, and setting out the exact amount of all public taxes, penalties, and costs.

It shall not be essential to the validity of a sale of real estate for delinquent taxes hereunder that the city assessor shall have attempted to make the amount due out of the personal property of the delinquent taxpayer, and the remedy provided in section sixty-three of this charter shall be deemed cumulative only.

SEC. 68. *Redemption of real estate sold for taxes.*—Within one year from the date of sale the delinquent taxpayer, tax's! or anyone for him, shall have the right of paying to the city assessor the amount of the public taxes, penalties, and costs, together with interest on the purchase price at the rate of fifteen per centum per annum from the date of purchase to the date of redemption; and such payment shall entitle the person paying to the delivery of the certificate issued to the purchaser and a certificate from the city assessor that he has thus redeemed the real estate, and the city assessor shall forthwith pay over to the purchaser the amount by which such real estate has thus been redeemed, and the same shall thereafter be free from the lien of such taxes and penalties.

SEC. 69. *Deed to purchaser of real estate on failure to redeem.*—In case the taxpayer shall not redeem the realty failure to redeem. sold as above provided within one year from the

date of sale, the city assessor shall, as grantor, execute a deed in form and effect sufficient to convey to the purchaser so much of the real estate against which the taxes have been assessed as has been sold, free from all liens of any kind whatsoever, and the deed shall succinctly recite all the proceedings upon which the validity of the sale depends.

SEC. 70. *Real estate forfeited to city if no bidder.*—In case there is no bidder at the public sale of such realty who offers a sum sufficient to pay the taxes, penalties, and costs, the city assessor shall declare the real estate forfeited to the city, and shall make, within two days thereafter, a return of his proceedings and the forfeiture, which shall be spread upon the records of his office.

SEC. 71. *Deed to city if forfeited real estate not redeemed.*—Within one year from the date of such forfeiture thus declared, the taxpayer, or anyone for him, may redeem said realty as above provided in cases where the same is sold. But, if the realty is not thus redeemed within the year, the forfeiture shall become absolute and the city assessor shall execute a deed, similar in form and having the same effect as the deed required to be made by him in case of a sale, conveying the real estate to the city. The deed shall be recorded as required by law for other real estate titles and shall then be forwarded through the Mayor to be filed with the secretary of the Municipal Board, who shall enter it in his record of city property.

SEC. 72. *Tax to constitute indebtedness of taxpayer.*—The assessment of a tax shall constitute a lawful indebtedness from the taxpayer to the city which may be enforced by a civil action in any court of competent jurisdiction, and this remedy shall be in addition to all the other remedies provided by law.

SEC. 73. *Provisions relating to suits assailing validity of tax. of tax.*—No court shall entertain any suit assailing the validity of a tax assessed under this article until the taxpayer shall have paid, under protest, the taxes assessed against him, nor shall any court declare any tax invalid by reason of irregularities or informalities in the proceedings of the officers charged with the assessment or collection of the taxes, or of a failure to perform their duties within the times herein specified for their performance, unless such irregularities, informalities, or failures shall have impaired the substantial rights of the taxpayer; nor shall any court declare any tax assessed under the provisions of this article invalid except upon condition that the taxpayer shall pay the just amount of his tax as determined by the court in the pending proceeding.

SEC. 74. *Provisions relating to suits assailing validity of tax sale.*—No court shall entertain any suit assailing the validity of a tax sale of real estate under this article until the taxpayer shall have paid into the court the amount for which the real estate was sold, together with interest at the rate of fifteen per centum per annum upon that sum from the date of sale to the time of instituting suit. The money so paid into court shall belong to the purchaser at the tax sale if the deed is declared invalid, and shall be returned to the depositor should he fail in his action. Nor shall any court declare any such sale invalid by reason of any irregularities or informalities in the proceedings of the officer charged with the duty of making the sale or by reason of failure by him to perform his duties within the time herein specified for their performance, unless such irregularities, informalities, or failures shall have impaired the substantial rights of the taxpayer.

SEC. 75. *One-fourth of real estate tax to be devoted to -one-fourth or schools.*—One-

fourth of all moneys realized from the real estate tax herein provided for shall be devoted exclusively to the support of free public primary schools of the city, and to the erection and maintenance of suitable school buildings. The Municipal Board may, however, appropriate from the general resources of the city additional funds for the support of these and other duly authorized public schools and the maintenance of school buildings.

ARTICLE X.—*Special Assessments for Public Improvements*

SEC. 76. *Power to levy special assessments for certain purposes.*—The Municipal Board may, by ordinance duly approved, provide for the levying and collection, by special assessments of the real estate comprised within the district or section of the city especially benefited, of a part not to exceed sixty per centum of the cost of laying out, opening, constructing, straightening, widening, extending, grading paving, curbing, walling, deepening, or otherwise establishing, repairing, enlarging, or improving public avenues, roads, streets, alleys, sidewalks, parks, plazas, bridges, landing places, wharves, piers, docks, levees, reservoirs, waterworks, water mains, water courses, esteros, canals, drains, and sewers, including the cost of acquiring the necessary land. Within the meaning of this article, all real estate comprised within the district benefited, except lands or buildings owned by the United States of America, the Commonwealth of the Philippines, or the City, of Cebu, shall be subject to the payment of the special assessment, based upon the valuation of such real estate as shown by the books of the city assessor, or its present value as fixed by said officer in the first instance if the property does not appear of record in his books according to the valuation whereof the special tax has to be made, computed and assessed.

SEC. 77. *Contents of a special assessment ordinance.*—The ordinance providing for the levying and collection of a special assessment shall describe in terms of reasonable accuracy the nature, extent, and location of the proposed improvement; the probable cost of the improvement; the rate per centum of the cost to be defrayed by special assessment; the district which shall be subject to the payment of the said rate per centum of the proposed improvement, delimiting the same by metes and bounds, and the number of annual installments, which shall not be less than five, in which such special assessment shall be paid without any interest. The Municipal Board shall not be required to fix one uniform rate per centum for all the taxable real estate in the entire district, but may fix different rates for real estate in different parts or sections of the same, according as said property will derive greater or less benefit from the contemplated improvement.

SEC. 78. *Publication of the proposed special assessment ordinance, and public hearing on the same.*—The proposed special assessment ordinance shall be published for the period of one week in two daily newspapers published in the city, before its adoption by the Board. The secretary of the Municipal Board shall, upon request, furnish a copy of the proposed ordinance free of charge to each owner affected or his agent, and shall insofar as possible send each of them a copy of said proposed ordinance by ordinary mail or otherwise. At the request of any owner, made within three days from the last publication of the proposed ordinance, or at its own motion, the Board or the committee thereof in charge of the project shall hold a public hearing on the same and hear all pertinent arguments and evidence offered by the persons interested or their attorneys, and such arguments and evidence shall be attached to the record of the project.

SEC. 79. *Transmitted of the ordinance and papers in connection therewith to the Mayor.*—The special assessment ordinance shall be sent to the Mayor for approval as in other cases, but upon forwarding the proposed ordinance passed by the Board, all papers pertaining to the same shall also be transmitted to the Mayor, and the time for the approval or vetoing thereof shall run only from the date of the receipt of the last paper lacking. The Mayor may consider the protest of the persons claiming to be affected if signed by a majority of said persons representing more than one-half of the total assessed value of the property which, according to the proposed ordinance, would be subject to the special assessment, and before approving or vetoing said ordinance, he may propose to the Municipal Board such amendment or amendments to the same as he may see fit.

SEC. 80. *Assessment of the special tax against the real estate affected.*—Upon the approval of the special assessment ordinance, the city assessor shall forthwith proceed to determine the special tax payable by each realty each year during the period fixed in the ordinance, upon the basis of the estimated cost of the work and the total and parcel value of the real estate comprised within the district especially benefited, and shall notify each owner by ordinary mail of the special tax assessed against each property owned by him in the district benefited; but if, upon the completion of the improvement, it should appear that the cost has been less or more, the city engineer shall forthwith certify this fact to the assessor who shall thereupon proceed to rectify the assessment, reducing or increasing, as the case may be, the special tax upon each property affected for the unpaid remainder of the annual installments, or, if all are paid, fixing the amount to be credited to or the special additional tax to be collected from the realty, as the case may be, and shall notify persons interested of such rectifications.

SEC. 81. *Appeal to the board of tax appeals.*—Any owner considering himself aggrieved by any decision of the city assessor may appeal from the same to the board of tax appeals within the same time and in the same manner as prescribed by law for cases of assessment and valuation of real estate for the ordinary tax.

SEC. 82. *Payment of the special assessments.*—All sums and amounts due from any owner or owners as a result of any action taken by virtue of the authority conferred in this article shall be due and payable to the city assessor in the same manner as the annual tax levied on real estate under the provisions of the last preceding article hereof, and shall be subject to the same penalties for delinquency, and enforceable by the same remedies, as such, annual tax; and all such sums and amounts, together with any such penalties incurred, shall from the date on which they were assessed constitute liens on the property against which the same were assessed, and shall take precedence over any and all other liens which may exist upon such property excepting only such as may have attached as a result of the nonpayment of said annual tax.

ARTICLE XI.—*The Regulation and Sale of Intoxicating Liquors*

SEC. 83. *First-class bar license.*—A license for a period of six months may be issued to a person or persons of good character, authorizing him or them to keep and maintain at a place to be specified in the license, a saloon, bar, or drinking place for the sale of intoxicating liquors, including thereunder fermented vinous or fermented malt, and spiritous beverages, in quantities less than four liters, upon payment in advance of the sum of six hundred pesos. A license of this class shall be known as a "first-class bar license."

SEC. 84. *Second-class bar license*.—A license for a period of six months may be issued to a person or persons of good character, authorizing him or them to keep and maintain, at a place to be specified in the license, a saloon, bar, or drinking place for the sale of fermented malt or fermented vinous liquors only, in quantities less than four liters, upon payment in advance of the sum of three hundred and fifty pesos. A license of this class shall be known as a "second-class bar license."

SEC. 85. *Theater liquor license*.—A license for a period of six months may be issued to a person or person of good character owning or managing a bona fide theater or race track authorizing him or them to keep and maintain a bar on the premises of the theater or race track for the sale of distilled spirits, wine and fermented liquors, in quantities of two decaliters or less, which liquors may be sold or served to bona fide patrons of the theater or race track, under such restrictions as may be prescribed by the Board, upon payment in advance of the sum of eight hundred pesos. A license of this class shall be known as "theater liquor license." A theater liquor license may also be issued to holders of first or second-class bar licenses for a period of one or more weeks, upon payment in advance of the sum of fifty pesos per week for the time covered by each license. No such license shall be issued for less than one week.

SEC. 86. *Publication of notice of application for bar license or renewal thereof*.—No application for a license, or for a renewal thereof, to conduct a first or a second-class bar, shall be received until the applicant or applicants shall have at his or their own expense published a notice in six consecutive editions in two newspapers, which notice shall be in such form as the Mayor may determine, and shall set forth the fact that, on a certain date, it is proposed by such applicant or applicants to make application for a license to conduct a bar in the building situated on a specified street and at a specified number. Such notice shall be signed by the applicant or applicants and copies of the newspapers containing the notice shall be filed with the application.

SEC. 87. *Closed hours.—When unlawful to sell, etc.*—All saloons, bars, and other drinking places shall be closed from twelve o'clock midnight until five o'clock antemeridian the following day, except that when the following day shall be Sunday they shall remain closed until five o'clock antemeridian the following Monday; and it shall be unlawful for any person to sell, give away, or otherwise dispose of any fermented malt, vinous, or spirituous, or other intoxicating liquors between the above-mentioned hours except as herein provided, but the words "give away" where they occur in this article shall not apply to the giving away of intoxicating liquors by a person in his private dwelling, unless such private dwelling shall become a place of public resort.

SEC. 88. *First-class restaurant liquor license*.—A license for a period of six months may be issued to a person or persons of good character, owning or managing bona fide hotels, restaurants, or cafes, authorizing him or them to sell, serve, give away, or otherwise dispose of fermented vinous, fermented malt, and spirituous beverages or liquors, in quantities less than four liters, to bona fide guests of such hotels, restaurants, or cafes with bona fide meals at any and all hours, upon the payment in advance of the sum of two hundred and fifty pesos. A license of this class shall be known as a "first-class restaurant liquor license."

SEC. 89. *Second-class restaurant liquor license.*—A license for a period of six months may be issued to a person or persons of good character, owning or managing bona fide hotels, restaurants, or cafes, authorizing him or them to sell, serve, give away, or otherwise dispose of fermented malt or fermented vinous beverages or liquors in quantities less than four liters, to bona fide guests of such hotels, restaurants, or cafes with bona fide meals at any and all hours upon the payment in advance of the sum of one hundred and fifty pesos. A license of this class shall be known as a "second-class restaurant liquor license."

SEC. 90. *First-class hotel liquor license.*—A license for a period of six months may be issued to a person or persons of good character, owning or managing bona fide hotels and holding for such hotel a "first-class restaurant liquor license," authorizing him or them to sell, serve, give away, or otherwise dispose of fermented vinous, fermented malt, and spirituous beverages or liquors, in quantities less than four liters, to bona fide guests of such hotels in their rooms at any and all hours, upon payment in advance of the sum of two hundred and fifty pesos. A license of this class shall be known as a "first-class hotel liquor license."

SEC. 91. *Second-class hotel liquor license.*—A license for a period of six months may be issued to a person or persons of good character, owning or managing bona fide hotels, and holding for such hotel a "second-class restaurant liquor license," authorizing him or them to sell, serve, give away, or otherwise dispose of fermented malt and fermented vinous beverages or liquors, in quantities less than four liters, upon payment in advance of the sum of one hundred and fifty pesos. A license of this class shall be known as a "second-class hotel liquor license."

SEC. 92. *Native wines not permitted under above licenses.*—None of the above-mentioned licenses shall be construed to permit the keeping in stock, selling, giving away, or otherwise disposing of any of the so-called native wines, such as "vino," "anisado," "tuba," etc., and it shall be unlawful to keep in stock, sell, give away, or otherwise dispose of any such so-called native wines at any place for the keeping or maintaining of which any of the above-mentioned licenses shall have issued.

SEC. 93. *Unlawful to keep drinking place or dispose of liquor without license.*—It shall be unlawful for any person or persons to conduct or maintain any saloon, bar, or drinking place without first having obtained a license therefor, or to keep in stock, sell, give away, or otherwise dispose of any intoxicating liquors that are not included within the license so obtained; and it shall likewise be unlawful for the proprietor or manager of any hotel, restaurant, or cafe to keep in stock, sell, give away, or otherwise dispose of any intoxicating liquor without having obtained a license therefor as prescribed in this article. It shall be unlawful for any employee or agent of the proprietor of a saloon, bar, drinking place, hotel, restaurant, or cafe to sell or give away liquor when no license has been issued to his principal authorizing the same.

SEC. 94. *Amusement in saloons and disorder, intoxication and adulterated liquor forbidden.*—It shall be unlawful to play or permit to be played any musical instrument or conduct or operate or permit to be conducted or operated any gambling device, slot machine, phonograph, billiard or pool table, or other form of amusement in saloons, bars, or drinking places, but this shall not be construed as prohibiting music in the dining or other rooms than the barrooms of bona fide hotels holding liquor licenses, or in theaters

holding "theater liquor licenses."

It shall be unlawful for the holder of licenses herein provided for to maintain any but a clean, quiet, and orderly place, or to sell or serve or permit to be sold or served any intoxicating liquor to any intoxicated person, or to permit such persons to be or remain in or about the premises where such liquors are kept for sale or to sell or keep therein any wine, beer, or liquor, except such as is of good standard quality and free from adulteration.

SEC. 95. *Native wine license*.—A license for a period of six months may be issued to a person or persons of good character, authorizing him or them to maintain a shop for the keeping in stock, selling, giving away, or otherwise disposing of such native wines (so called) and liquors only as are not now, or shall not hereafter be, prohibited to be manufactured and sold, in quantities less than four liters, upon payment in advance of the sum of five pesos, but no such licenses shall be construed to include or authorize the keeping in stock, selling, giving away, or otherwise disposing of any of the liquors or beverages included within the licenses provided for in sections eighty-three and eighty-four of this charter, and it shall be unlawful to keep in stock, sell, give away, or otherwise disposing of any of the liquors or beverages included within the licenses provided for in sections eighty-three and eighty-four of this charter, and it shall be unlawful to keep in stock, sell, give away, or otherwise dispose of any such liquors or beverages at any place licensed for the sale of native wines and liquors. A license of this class shall be known as a native wines and liquors. A license of this class shall be known as a "native wine license," and it shall be unlawful for any person or persons to sell such native wines or liquors or to maintain a shop for keeping in stock, selling, serving, giving away, or otherwise disposing of any such native wines or liquors without such license, or having obtained such license, to sell, serve, give away, or otherwise dispose of such wines and liquors except as herein prescribed.

SEC. 96. *Druggist's liquor license*.—Licenses for periods of one year may be issued to any person or persons of good character, operating a regularly licensed bona fide apothecary shop or drug store, authorizing him or them to sell, give away, or otherwise dispose of fermented malt, fermented vinous, and spirituous liquors, in quantities of not less than two liters nor more than fifty liters at any one time to any person, upon payment in advance of the sum of one hundred pesos. Such license shall be known as a "druggist's liquor license," and it shall be unlawful for the proprietor of any drug store or apothecary shop or for his employees or agents to sell, serve, give away, or otherwise dispose of any intoxicating liquors without such license, or, having obtained such license, to sell, serve, give away, or otherwise dispose of such intoxicating liquors except as herein provided, or to allow any such liquors to be drunk upon the premises.

SEC. 97. *Grocery liquor license*.—Licenses for periods of one year may be issued to any person or persons of good character, operating a regularly licensed bona fide grocery store, authorizing him or them to sell, give away, or otherwise dispose of malt, fermented vinous, and spirituous liquors, in quantities not less than one bottle, nor more than one case or one barrel of such bottles and of such intoxicating liquors as may be kept in bulk, to sell, give away, or otherwise dispose of not less than two liters nor more than fifty liters at any one time or to any person upon payment in advance of the sum of one hundred pesos. Such license shall be known as "grocery liquor license," and it shall be unlawful for the proprietor of any grocery or any of his employees or servants to sell, serve, give away,

or otherwise dispose of any intoxicating liquors without such license, or, having obtained such license, to sell, serve, give away, or otherwise dispose of such intoxicating liquors except as herein provided, to allow any such liquors to be drunk upon the premises.

SEC. 98. *Brewer's license*.—Licenses for periods of one year may be issued to any person or persons of good character, authorizing him or them to conduct the business of a brewer, and to sell, give away, or otherwise dispose of his or their products in their brewery in quantities of four liters or more upon payment in advance of the sum of one thousand two hundred pesos. A license of this class shall be known as a "brewer's license," and it shall be unlawful for any person or persons to conduct any brewery without such license, or having secured such license, to sell, give away, or otherwise dispose of the products of such brewery except as herein prescribed.

SEC. 99. *Distiller's license*.—Licenses for periods of one -^dist year may be issued to any person or persons of good character, authorizing him or them to conduct the business of distiller of alcoholic liquors and to sell, give away, or otherwise dispose of his or their products in the distillery, in quantities of four liters or more, upon payment in advance of the sum of six hundred pesos. A license of this class shall be known as a "distiller's license," and it shall be unlawful for any person or persons to conduct any distillery for the manufacture of alcoholic liquors without such license, or, having secured such licenses, to sell, give away, or otherwise dispose of the products of such distillery except as herein prescribed.

SEC. 100. *First-class wholesale liquor license*.—Licenses for periods of one year may be issued to any person or persons of good character, authorizing him or them to keep in stock and sell or give away fermented malt, vinous, and spirituous liquors in quantities of four liters or more, upon payment in advance of the sum of one thousand two hundred pesos; but such licenses may be paid in advance in four quarterly installments of three hundred pesos each, at the election of the licensee. A license of this class shall be known as a "first-class wholesale liquor license," and it shall be unlawful for any person or persons to sell or otherwise dispose of fermented malt, vinous, and spirituous liquors at wholesale without such license, or, having obtained such license, to sell or otherwise dispose of such liquors except as herein prescribed, but nothing herein shall be construed as prohibiting any person or persons holding a "brewer's license" or "distiller's license" from disposing of the products of such brewery or distillery at the place of production.

SEC. 101. *Second-class wholesale liquor license*.—Licenses for periods of one year may be issued to any person or c persons of good character, authorizing him or them to keep in stock and sell or give away fermented malt and fermented vinous liquors in quantities of four liters or more, upon payment in advance of the sum of six hundred pesos; but such licenses may be paid in advance in four quarterly installments of one hundred and fifty pesos each, at the election of the licensee. A license of this class shall be known as a "second-class wholesale liquor license," and it shall be unlawful for any person or persons to sell or otherwise dispose of fermented malt or fermented vinous liquors at wholesale without such license, or, having obtained such license, to sell or otherwise dispose of any liquor but fermented malt or fermented vinous liquors, or to sell or otherwise dispose of such liquors except as herein prescribed.

SEC. 102. *Third-class wholesale liquor license*.—Licenses for periods of one year may be

issued to any person or persons of good character, authorizing him or them to keep in stock fermented vinous liquors, except champagne and other sparkling wines, and to sell such fermented vinous liquors in quantities of not less than one bottle, and of such liquors as are kept in bulk, to sell not less than two liters not to be drunk upon the premises, upon payment in advance of the sum of fifty-two pesos. Such license shall be known as a "third-class wholesale liquor license," and it shall be unlawful for any person or persons to sell, give away, or otherwise dispose of fermented vinous liquors at wholesale without such license, or having obtained such license, to sell, give away, or otherwise dispose of any liquor but fermented vinous liquor, not including champagne or other sparkling wines, or to sell, give away, or otherwise dispose of such liquor except as herein prescribed.

SEC. 103. *Transfer of license must be authorized—Fee.*—No license shall be transferred from one person to another or from one place to another except by the written authority of the Mayor; and no transfer shall be made which involves the addition of privileges. For all authorized transfers ten per centum of the original fee shall be collected.

SEC. 104. *License to be kept posted.*—It shall be the duty of the holder of every license for the sale of intoxicating liquors to keep it posted in a conspicuous place in the room where the liquors are sold and the failure to do so is hereby declared unlawful.

SEC. 105. *Licenses for sale of liquor in certain places— Streets and plazas prohibited.*—No license shall be granted for the sale of any intoxicating liquor in the public markets, booths, or stands situated in the public streets or plazas, or to street venders or peddlers.

SEC. 106. *Supplying native wines to soldiers unlawful.*—Nothing in this article shall be construed as authorizing the sale, gift, or other disposal to soldiers of the United States Army of any of the so-called "native wines," such as "vino," "Anisado," "tuba," and so forth, which is declared to be unlawful.

SEC. 107. *Liquor licenses revoked by the Mayor.*—If after due investigation, the Mayor shall decide that any person licensed to sell liquors is abusing his license and privileges to the injury of the public morals or peace or that any place so licensed has been or is conducted in a disorderly or unlawful manner, or is a nuisance, or is permitted to be used as a resort for disorderly characters, criminals, or women of ill repute, the Mayor may by order summarily revoke such license. Such revocation shall operate to forfeit to the city all sums which may have been paid for said license and to prohibit the issuance to the person whose license is so revoked of any other liquor license for a term which may be fixed in said order.

SEC. 108. *Penalties.*—The violation of any of the provisions of the sections contained in this article shall be punished by a fine not to exceed two hundred pesos, or by imprisonment for not more than six months, or both, in the discretion of the court, without prejudice to the provisions of the next preceding section.

ARTICLE XII.—*Transitory Provisions*

SEC. 109. *Change of government.*—The city government provided for in this charter shall be organized immediately after the appointment and qualification of the city mayor and the election of the members of the municipal board at the next general elections. Pending

the next general elections, the offices of the members of the municipal board shall be filled by appointment of the President with the consent of the Commission on Appointments of the National Assembly.

SEC. 110. *Conduct of elections in Cebu.*—To carry out the purposes of the Election Law in the election of public officers for the City of Cebu, the duties which are by said law made incumbent upon provincial boards and municipal councils shall be performed by the municipal board of Cebu, and the duties imposed by said law upon provincial treasurers and municipal secretaries shall be performed by the secretary to the mayor.

SEC. 111. *Assembly District—Provincial Capital*—Until I otherwise provided by law, the City of Cebu shall continue as part of the Second Assembly District, and as the capital of the province.

SEC. 112. This Act shall take effect upon its approval.

Approved, October 20, 1936.



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